Responsible Administrator: VP Admin/Finance
Responsible Office: Human Resources
Effective Date: 07/01/2025
Approved by: President
Date of Revision: 07/01/2025

Background Checks

Policy Statement

This policy is to ensure that all newly hired Southeastern employees and volunteers undergo background checks. Additionally, employees who are identified as having elevated access to sensitive data or financial systems ("super access") will be subject to background checks at least once every three years. Background checks serve a vital role in the hiring process and support the university's efforts to maintain a safe and productive work environment. In accordance with the Fair Credit Reporting Act (FCRA) (and as further outlined herein), the University will notify and/or obtain consent from any individual subject to a background check prior to obtaining such report.

Purpose of Policy

Southeastern conducts background checks as an integral part of the University's effort to provide a safe and secure working and learning environment. They help protect the safety and well-being of students, employees and visitors, as well as the University's physical property, proprietary information and other assets.

Applicability

This policy applies to all new hires, volunteers, and employees determined to have super access to data/finances.

Policy Procedure

Background checks will be completed on the following individuals:

All paid University faculty and staff upon hire
All University volunteers
University students that are hired in an area where personal data/finances could be seen
Anyone working with children under 18 years of age

Candidates are required to consent to background check(s) to be considered for employment or volunteer activity at Southeastern. Any candidate who refuses to consent to a background check, refuses to provide information necessary to conduct a background check, or provides false or misleading information in connection with a background check may be removed from consideration for the position for which they applied or for which they intend to volunteer. If an individual has already been hired, promoted, transferred, or is already performing volunteer activity, and subsequently is found to have provided false or misleading information in connection with a background check, that individual may be subject to disciplinary action, up to and including termination.

Current Southeastern employees are required to self-disclose post-employment criminal convictions, not including minor traffic violations, which occur on or after the employment start date. Self-disclosure must be made to the Director of Human Resources within three (3) business days from the conviction. Employees who fail to self-disclose may be subject to disciplinary action up to and including termination.

Employees or volunteers who are subject to post-employment or post-activity background checks may be subject to disciplinary action up to and including termination based upon the results of their background check in accordance with applicable law and university policy.

Under the FCRA, employers are required to disclose to an individual that a background check may be obtained and to obtain the individual's authorization before they obtain a background check on a job applicant or employee

Evidence of criminal conviction(s) or other adverse information revealed by a background check will not automatically disqualify candidates from consideration or subject an employee to disciplinary action. Rather, the relevance of this information will be assessed with consideration given to job duties, the date of the offense(s) or information, and the nature of the offense(s) or information. Employment decisions made based upon information contained in a background check will be job-related, consistent with business necessity, and made in accordance with applicable federal and state law.

Background checks will not include genetic information, including family medical history.

Super access/privileges are defined as an employee that has access to sensitive data or financial data in the ERP system. Key employees with administrator role access in functional areas such as Finance, Human Resources, Student, and Office of Technology will be checked on a three-year cycle for as long as they are employed in those positions.

[End of Policy]